

23CMCV00729 23CMCV00729

County: los-angeles

Division: Civil Law and Motion

Department: E

Hearing date: 2026-09-02

Motion: DEFENDANT BUSWEST, LLC'S MOTION TO COMPEL MENTAL EXAMINATION OF PLAINTIFF CARRIE HODGSON
DATE: September 2, 2026 TIME: 8:30 A.M.

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Case Number: 23CMCV00729 Hearing Date: September 2, 2026 Dept: E

SUPERIOR

COURT OF THE STATE OF CALIFORNIA

FOR

THE COUNTY OF LOS ANGELES – SOUTH CENTRAL DISTRICT

CARRIE HODGSON,

Plaintiff,

vs.

THOMAS BUILT BUSES, INC.; BUSWEST, LLC;
DAIMLER TRUCKS NORTH AMERICA, LLC; FREIGHTLINER, LLC; and DOES 1-100,

Defendants.

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CASE

NO: 23CMCV00729

[TENTATIVE] ORDER RE: DEFENDANT BUSWEST,
LLC'S MOTION TO COMPEL MENTAL EXAMINATION OF PLAINTIFF CARRIE HODGSON

DATE: September 2, 2026

TIME: 8:30 A.M.

DEPT.: E

Moving Party: Defendant
Buswest, LLC

Responding Party: Plaintiff
Carrie Hodgson

Notice: Ok

Tentative Ruling: Defendant's

Motion to Compel Mental Examination of Plaintiff is GRANTED.

I.

BACKGROUND

This action arises out of injuries allegedly sustained by Plaintiff Carrie Hodgson ("Plaintiff") while attempting to clean the windshield of the bus, VIN 1T7Y8E23J1134612, vehicle family code number JDTN2VOCV05C, and body ID number 134612-1731284-141YS (the "Bus"), manufactured and designed by Defendants Thomas Built Buses, Inc. ("Thomas"), Daimler Trucks North America, LLC ("Daimler"), and Freightliner, LLC ("Freightliner").

On

May 18, 2023, Plaintiff filed the operative complaint against Thomas, Daimler, Freightliner, Buswest, LLC ("Buswest"), and DOES 1 through 100 (collectively, "Defendants"), alleging causes of action for: (1) Product Liability – Negligence; (2) Product Liability – Strict Product Liability; (3) Product Liability – Strict Product Liability - Failure to Warn; and (4) Negligence.

On

August 8, 2023, Thomas and Daimler jointly filed their Answer to Plaintiff's Complaint. On August 15, 2023, Buswest filed its Answer to Plaintiff's Complaint. On February 20, 2024, Shasta Union High School District (the "District") filed a Complaint-in-Intervention against Defendants. On April 3, 2024, Freightliner and Daimler were dismissed without prejudice from the complaint-in-intervention. On April 4, 2024, Freightliner was dismissed without prejudice from the operative complaint. On April 19, 2024, Thomas filed an answer to the complaint-in-intervention. On April 25, 2024, Buswest filed an answer to the complaint-in-intervention.

On

August 10, 2026, Defendant Buswest filed the instant Motion to Compel Mental Examination of Plaintiff.

On

August 20, 2026, Plaintiff filed her Opposition.

On August 25, 2026, Buswest filed its

Reply.

II.

ANALYSIS

A.

Legal

Standard

A defendant who seeks to conduct a mental examination of a plaintiff must file a motion and “obtain leave of court.” (Code Civ. Proc. § 2032.310(a).) Such a motion must “specify the time, place, manner, conditions, scope, and nature of the examination, as well as the identity and the specialty, if any, of the person or persons who will perform the examination.” (Code Civ. Proc. § 2032.310(b).) The court may grant such a motion “only for good cause shown.” (Code Civ. Proc. § 2032.320(a).) A showing of good cause generally requires that “the party produce specific facts justifying discovery and that the inquiry be relevant to the subject matter of the action or reasonably calculated to lead to the discovery of admissible evidence.” (Vinson v. Superior Court (1987) 43 Cal.3d 833, 840 (“Vinson”).) A mental examination is generally appropriate only when a plaintiff alleges continuing emotional distress or mental injury and so places his or her mental or emotional condition “in controversy” in the action. (Id. at p. 840.)

“An order granting a physical or mental examination shall specify the person or persons who may perform the examination, as well as the time, place, manner, diagnostic tests and procedures, conditions, scope, and nature of the examination.” (Code Civ. Proc. § 2032.320(d).) “[T]he court is to describe in detail who will conduct the examination, where and when it will be conducted, the conditions, scope and nature of the examination, and the diagnostic tests and procedures to be employed. The way to describe these diagnostic tests and procedures—fully and in detail—is to list them by name.” (Carpenter v. Superior Court (2006) 141 Cal.App.4th 249, 260 (“Carpenter”).)

The party who seeks to compel a mental examination has the burden to specify the diagnostic tests and procedures to be conducted. (Carpenter, *supra*, 141 Cal.App.4th at p. 267.) “Insisting that section 2032.320 means what it says—that the diagnostic tests and procedures must be specified—will result in an orderly and efficient

means of balancing the interests of the plaintiff and defendant. The defendant, aware that the court must name the diagnostic tests and procedures in the order granting a mental examination, will identify the potential tests and procedures in its moving papers. The plaintiff, assisted by counsel and a psychologist or other expert, may consider whether the proposed tests are inappropriate, irrelevant, or abusive, and submit evidence and argument to that effect if necessary.” (Ibid.)

B.

Meet and
Confer

A

motion for examination made pursuant to Code of Civil Procedure § 2032.310(a) must be accompanied by a declaration attesting to the moving party’s attempt to meet and confer “either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion.” (Code Civ. Proc. § 2016.040(a); Id., § 2032.310(b).)

Counsel

for Defendant, Kelly Cox (“Cox”), attaches a declaration attesting to meet and confer efforts with Plaintiff’s counsel and the attorney for Daimler and Thomas Built regarding Plaintiff’s orthopedic physical examination, CRPS physical examination, and mental examination. (Cox Decl., ¶ 2.) Although Cox does not state the date or manner of the meet and confer discussion, Cox attests that Plaintiff’s counsel ultimately agreed that Plaintiff would appear in Sacramento for the defense examinations. (Id.)

Consistent

with the parties’ agreement and pursuant to the Demands for Medical Examination subsequently served by Daimler and Thomas Built, Plaintiff’s medical examinations were completed on May 28, 2026. (Id., ¶ 3.)

On April 27,

2026, Buswest served a Demand for Mental Examination for May 29, 2026 in Sacramento; Plaintiff sent a meet and confer letter on May 12, 2026 objecting to the examination for being unilaterally set and objecting to the Sacramento location, among other things. (Id., at ¶ 4, Exh. F.) Counsel attests Plaintiff agreed to the examination proceeding in Sacramento but otherwise objected to the Demand. (Id.)

After further discussion, including correspondence from Buswest's physician responding to argument raised in Plaintiff's May 12, 2026 letter, the parties were unable to come to an agreement. (Id., ¶¶ 6-7.)

The

Court finds Buswest has satisfied its statutory meet and confer requirement.

C.

Discussion

Buswest

seeks an order compelling Plaintiff to attend a Mental Examination with Dr. Kyle Boone, PH.D., ABPP-ABCN ("Dr. Boone") at the Four Points by Sheraton Sacramento International Airport – Rivers East, 4900 Duckhorn Drive, Sacramento, CA 95834 on September 24, 2026 at 9:00 a.m. Although this location is outside a 75-mile radius of Plaintiff's residence in Shasta County, California, Buswest will reimburse Plaintiff's reasonable travel expenses.[1]

Buswest has specified the diagnostic test and procedures to be performed as (1) a history taking and observation of Plaintiff for the purpose of gathering information in specific areas, taking approximately 1.5 hours to complete; and (2) administration to Plaintiff a number of standard, validated psychological tests, taking approximately 4.5 hours to complete. (Mot., p. 7:27–8:20; see also Dr. Boone Decl., ¶¶ 7-10.)

Plaintiff

argues in opposition that Buswest's motion should be denied because it is duplicative of the two prior defense medical evaluations, is overbroad, and the cited studies do not justify a psychological exam.

1.

Good Cause for the Proposed Mental Examination

Buswest contends that good cause

exists for taking Plaintiff's mental examination because Plaintiff has placed her mental condition at issue both as to her psychiatric injury and her Complex Regional Pain Syndrome ("CRPS") claims.

Buswest argues that: (1) Plaintiff's Complaint alleges that the subject incident caused her "great mental" suffering that allegedly continues; (2) Plaintiff responded to written discovery alleging to have sustained psychiatric injuries; and (3) Plaintiff's document production shows she has received

therapy for her claimed psychiatric issues from a Dr. Gail Winslow, PhD. (Mot., p. 5:17-27.) Buswest further argues that Dr. Gharibo, a defense-retained expert, examined Plaintiff on May 28, 2026 and concluded that because Plaintiff's medical records, history, and current treatment contradict Plaintiff's CRPS claim, this places Plaintiff's mental condition in controversy as it relates to Plaintiff's CRPS claim. Finally, Buswest argues there is a strong link between psychological conditions and claimed CRPS and a mental examination is therefore critical to an assessment of Plaintiff's disputed CRPS claim.

Plaintiff objects that good cause exists, arguing that her mental condition must be in controversy and Buswest must produce specific facts justifying the examination and may not require that she undergo psychiatric testing solely on the basis of speculation that something of interest may surface.

Plaintiff further argues that her assertion of mental injuries does not operate to waive her privacy interests and, before invading her privacy, Buswest must explain why the mental examination is directly relevant to its defense and essential to a fair resolution of this matter.

Here, the parties agree that Plaintiff claims a diagnosis of CRPS. (See Opp., p. 2:17-19 ("Based on subjective symptom reporting and physical evidence, Ms. Hodgson's providers have repeatedly diagnosed her with Complex Regional Pain Syndrome"); see also Mot., p. 6:2-3 ("In response to written discovery, Plaintiff claims to have developed Complex Regional Pain Syndrome").) Where the parties differ is in their assessment of whether a mental examination is necessary for Defendant's evaluation of Plaintiff's claimed CRPS.

Plaintiff's counsel offers citations to medical literature and opinions that the objective and subjective evidence cited are sufficient to establish Plaintiff's claims. (See, e.g., Opp., p. 2:28-5:8, fn. 2.) However, Plaintiff's counsel's assessment and arguments are premised upon the "Budapest Criteria" cited in the Opposition as "viewed on August 14, 2026" from a government website but with no foundation or authentication presented. (See Opp., p. 2:28-3:22, fn. 1.) Defendant offers the declaration of Dr. Boone, a licensed and board certified psychologist, who opines that "[t]he established research literature demonstrates a strong link between psychological conditions and claims CRPS" and refutes Plaintiff's counsel's claims that: (1) the proposed examination is a neuropsychological exam (rather than a psychological evaluation); (2) CRPS is not established or

refuted by broad personality testing: and (3) some of the proposed testing is neither relevant or appropriate for a CRPS-related exam. (Dr. Boone Decl., ¶¶ 13-16.) In this instance, relating to the propriety, need and appropriateness of a psychiatric evaluation regarding a syndrome that may have psychiatric foundations, the Court does not find the opinion of a licensed attorney arguing from an unauthenticated website article, however experienced the attorney may be, to be more persuasive than the opinion of a licensed medical professional with attested experience in evaluating the syndrome at issue.

Thus, and although in her Opposition Plaintiff cites a medical study regarding CRPS and points to various “subjective and objective evidence support[ing] her CRPS diagnosis” (see Opp., p. 2:28-5:8), what remains is a claimed diagnosis of a condition that has a psychiatric component and that is claimed as part of Plaintiff’s damages. Plaintiff’s claimed CRPS is at issue and there is good cause to allow Defendant to conduct a mental examination to probe the roots of Plaintiff’s claimed diagnosis. [2]

2.

Prior Defense Medical Evaluations

Plaintiff contends the proposed mental examination is duplicative because she has already been subjected to two medical examinations and has already produced all her medical records. Plaintiff argues that Dr. Boone admits she intends to probe the history of the alleged injuries and Plaintiff’s physical symptoms as well as Plaintiff’s past psychological and medical illnesses and difficulties, which Plaintiff contends she has already disclosed. Plaintiff argues that because she has already been subject to two Defense medical examinations and produced all her medical records, the additional examination from Dr. Boone will substantially overlap the same topics.

The Court does not find Plaintiff’s argument persuasive. Plaintiff may have disclosed “all such relevant information” but the fact that Plaintiff may have disclosed such information in conjunction with a physical examination does not mean that disclosure as part of a mental examination is cumulative. A mental examination is fundamentally different from a physical examination in its purpose and methodology and that the mental examination may overlap with aspects of the physical examination does not make it cumulative such that the mental examination need be denied as Plaintiff requests.

3.

Breadth of the Proposed Mental Examinations

Plaintiff first contends the mental exam is “wildly” overbroad because Dr. Boone intends to probe the entirety of Plaintiff’s developmental history, including “plaintiff’s family origin; psychological, psychiatric, and medical difficulties within that family; their educational background; their work history; and social development history, including information about marriages and children.” (Opp p. 7:4-7 (citing Dr. Boone Decl., ¶ 9).) Plaintiff argues that “[s]eeking such information is a gross violation of Ms. Hodgson’s privacy rights, is ridiculously overbroad, and serves no legitimate purpose” because Plaintiff “seeks the ordinary psychological damages which naturally flow from the physical injuries she suffered.” (Id., p. 7:8-13.)

Upon review of the record presented, it does not appear that Plaintiff is seeking “the ordinary psychological damages which naturally flow from the physical injuries she suffered.” As is noted above, Plaintiff claims CRPS, which according to Plaintiff “is characterized by pain that is greater than would be expected from the injury that causes it.” (Opp., p. 2:26-27 (citing *Fitch v. BNSF Railway Co.* (2025) 2025 WL 69178, *2, n. 2.) It cannot be said that a request to perform a mental examination to evaluate a condition which Plaintiff herself admits is outside the normal expectations of the situation is “wildly overbroad.”

Next, Plaintiff claims that Defendant’s proposed mental examination is overbroad and Dr. Boone fails to demonstrate good cause to perform psychological tests for Plaintiff’s physical injuries, because “[a] jury can determine whether Ms. Hodgson’s testimony and medical records support her claim for emotional harm resulting from the Incident,” and “Dr. Boone is flatly mistaken in contending that psychological testing is necessary to determine Ms. Hodgson’s CRPS because CRPS is a neurological condition.” (Opp., p. 7:26-8:7 (emphasis omitted).) Again, Plaintiff provides no means by which the Court might determine the veracity of her assertions as to Dr. Boone’s credibility or veracity in attesting to the need for psychological testing. Dr. Boone declares that the tests to be performed “are accepted by the psychological community as useful for an informed and objection opinion as to the cause, nature and degree of emotional distress being claimed by plaintiff, and the CRPS claim,” “the published diagnostic criteria for CRPS require that to make

the diagnosis 'there is no other diagnosis that better explains the signs and symptoms' (meaning that other diagnoses must be eliminated), and "[t]he established research literature on CRPS demonstrates a strong link between psychological conditions and claimed CRPS." (Dr. Boone Decl., ¶¶ 10, 12, 13.) The Court finds Dr. Boone's declaration sufficient as to the proposed breadth of the examination.

However, the Court also finds that

Dr. Boone's declaration goes beyond a determination as to CRPS. Dr. Boone attests that "the purpose of the mental examination of Plaintiff is to determine, within my field of expertise, the nature, scope, and extent of Plaintiff's alleged psychiatric injuries related to the subject matter of this litigation, including CRPS." (Dr. Boone Decl., ¶ 6.) This is overbroad. As is noted above, Buswest has shown good cause for an evaluation of Plaintiff's claimed CRPS. But the fact that Plaintiff has alleged general emotional distress does not automatically warrant unrestricted inquiry into all aspects of Plaintiff's mental health. (See, e.g., *Barrenda L. v. Superior Court* (1998) 65 Cal.App.4th 794 ("Barrenda").)[3]

Plaintiff's examination shall be limited

to the CRPD that is at controversy here and Dr.

Boone's inquiries must remain focused on Plaintiff's CRPD. Dr. Boone is not permitted to inquire about unrelated body parts, injuries, or medical diagnoses, nor should Dr. Boone inquire into Plaintiff's complete life history. Dr. Boone may ask questions that provide context for Plaintiff's alleged CRPD and symptoms such as Plaintiff's educational, occupational, or social history to the extent that such questions may relate to Plaintiff's CRPD and symptoms or provide relevant context to the answers given.

Finally, as to Plaintiff's arguments

regarding psychological testing for a neurological condition and Dr. Boone's purported beliefs as to whether Plaintiff is telling the truth about her condition, the Court finds neither argument persuasive. Dr. Boone's attestations as to the need for the mental examination are contested only via counsel's declaration; counsel has provided no basis for the Court to determine that arguments made in the contrary are a substitute for the considered opinion of a licensed medical professional. As to whether Dr. Boone believes Plaintiff is being truthful and Plaintiff's assertion that Dr. Boone is attempting to "usurp the jury's role" by assessing Plaintiff's credibility (see Opp., p. 8:25-9:4), whatever determinations Dr. Boone makes will be in accordance with the doctor's attested professional licensure and the parameters of the medical examination. The jury's determination as to both Dr. Boone's assessment and Plaintiff's testimony remains the jury's province.

4.

Recording/Disclosure

Plaintiff

contends that the Court should deem the issue of recording and disclosure of the mental examination waived because the issue was not raised in Buswest's Notice of Motion or Memorandum of Points and Authorities and was only raised in Dr. Boone's declaration. (Opp., p. 14:19-22.) The Court does not consider the issue of recording and/or disclosure of the mental examination waived; Buswest's motion properly puts before the Court the taking of Plaintiff's mental examination along with the parameters of any such examination and Buswest's Outline in Lieu of Separate Statement adequately addresses the issue.

As

to the proposed restrictions on recording and disclosure, Plaintiff appears to have asserted various objections via her counsel's May 12, 2026 letter (see Cox Decl., ¶¶ 4, 9, Exh. F), but presents argument as to only recording and the disclosure of data, citing the 2023 Court of Appeal decision in Randy's Trucking, Inc. v. Superior Court, 91 Cal.App.5th 818 ("Randy's Trucking") in support of her argument that the raw testing data should and any audio recording should be disclosed. The Court finds that, in the absence of further argument or elaboration, no third party is permitted to be present during the mental examination and no videotaping of the examination will be permitted. As to audio recording, Dr. Boone and Plaintiff "shall have the right to record [the] mental examination by audio technology." (Code Civ. Proc. § 2032.530(a).)[4]

Regarding disclosure of the raw

testing data and materials, Buswest argues that, for test security, protection and copyright reasons, the test material and raw data should be ordered released only to Plaintiff's expert. Via

Dr. Boone's declaration and various cited position papers, Buswest contends that the value and validity of the test materials depend in whole or in part upon the naivete of the test subject and the possibility that the test material might be distributed or used in an unintended manner (such as to coach future clients) would undermine the efficacy of the test materials. (See Dr. Boone Decl., ¶¶ 18-28.) Dr. Boone further declares that even a

protective order would not suffice because "it is well understood that protective orders are not adequately protective of psychological/neuropsychological test materials." (Id., ¶ 30-32.) And

finally Dr. Boone argues that the release of the test materials to Plaintiff's counsel would not be beneficial because "[t]hey do not have the professional training and experience to evaluate, by viewing the test information, as to whether I administered, scored, and/or interpreted the tests correctly; only a psychologist has the ability to make those determinations" (id., ¶ 33) and notes that because many neuropsychologists will refuse employment if ordered to turn over their test data, an order to do so is effectively an order preventing a defendant from retaining an expert. (Id., ¶¶ 37-38.)

It is established that "trial court[s] [have] the power to order disclosure of test materials and data to the plaintiff's attorney." (Randy's Trucking, supra, 91 Cal.App.5th at p. 837 (citing Vinson, supra, 43 Cal.3d at p. 846).) Courts permit such disclosure when the plaintiff's need for these materials outweighs the medical expert's concerns regarding potential violations of ethical and professional obligations. (Id. at p. 837.)

Citing Randy's Trucking, Plaintiff argues that her "right to take discovery and cross-examine defendant's expert witnesses includes being able to examine the expert on the matter upon which the expert's opinion is based and the reasons for that opinion [and] [w]ithout the raw data and audio recording, plaintiff[] cannot effectively scrutinize the way the data was collected, determine if there are discrepancies, and cross-examine the neuropsychologist on the basis and reasons for the neuropsychologist's opinion." (Opp., p. 15:4-9 (cleaned up))(quoting Randy's Trucking, supra, 91 Cal.App.5th at p. 838).)

Pursuant to Evidence Code § 721, "a witness testifying as an expert may be cross-examined to the same extent as any other witness and, in addition, may be fully cross-examined as to . . . the matter upon which his or her opinion is based and the reasons for his or her opinion." (Evid. Code, § 721(a).) Accordingly, per the Evidence Code, Plaintiff has the right to cross-examine Dr. Boone regarding the underlying information that informs her opinion, including the raw data and testing materials. Defendant's concerns as to the possible dissemination of test materials do not trump Plaintiff's right to cross-examine an expert witness as to the basis for that expert's opinion; "95% of board-certified neuropsychologists in California" may have "signed a statement indicated that they will withdraw from cases if ordered to turn over protected information to employees" (see Dr. Boone Dec. ¶ 38), but even 95% of board-certified neuropsychologists in California cannot overturn a legislatively enacted rule of evidence meant to

ensure a full and fair trial.

To the extent that Buswest contends that the disclosure of raw data and testing materials to Plaintiff's counsel would constitute a violation of copyright law and the ethical obligations of psychological professionals, the Court finds this argument unpersuasive.

Initially, the Court notes outside of Dr. Boone's statement that the materials are "highly sensitive [and] copyright protected" (see Dr. Boone Decl., ¶ 19), Buswest does not provide a legal analysis to specify which aspects of copyright law would potentially be violated by the proposed disclosure. As to Dr. Boone's averments regarding studies indicating that testing materials might be disclosed by personal injury attorneys and the measures taken by other professions to "zealously maintain test security" (see *id.*, ¶¶ 21-22), the Court finds no reason to simply accept as true Dr. Boone's recitation of studies in fields where she professes no expertise.

In terms of any potential ethical violation(s), Dr. Boone references restrictions placed by the California Board of Psychology, however those restrictions – as quoted by Dr. Boone – prohibit the reproduction or distribution "in public or in publications subject to general public distribution" and require that access to test materials be limited "to persons with professional interests who will safeguard their use." (Dr. Boone Decl., ¶ 24 (citing Title 15, From Laws and Regulations Relating to the Practice of Psychology 2009 California).) This instance, of course, does not involve reproduction or distribution to the general public or in any publication subject to general public distribution but does involve distribution to attorneys with a professional interest who will be (as is set forth below) instructed to safeguard any use of the materials via an appropriate protective order.[5] Dr. Boone's references to "Official Position of the American Academy of Clinical Neuropsychology on Test Security (2022)" (*id.*, ¶ 25, Exh. C) and the 2021 "Update on Third Party Observers in Neuropsychological Evaluation: An Interorganizational Position Paper" (*id.*, ¶ 26, Exh. D) are not substantiated with any discussion and the Court therefore does not further address those references. As to the position of the American Psychological Association that "fair and reasonable transparency and access to psychological test data and test materials in legal proceedings is best achieved and scientific validity best preserved when psychologists share test materials and test data with other psychologists and other experts properly trained in test administration and interpretation who have a legal and ethical obligation to

protect test data and test materials” as quoted by Dr. Boone in paragraph 27 of her declaration, the Court finds that this position does not adequately account for Plaintiff’s right to cross-examine an opposing party’s expert. The Court is of course concerned with the expressed need for maintaining the security of testing materials, but that concern is weighed against Plaintiff’s due process rights. The Court finds that disclosing the raw data and testing materials under a protective order will not contravene the cited ethical standards and will serve to adequately protect Plaintiff’s due process rights.

5.

Protective Order

In addressing the adequacy of a protective order in safeguarding the test materials, Dr. Boone cites to a study which indicates that protective orders are inadequate to safeguard psychological test materials given: (1) the inability to monitor compliance with protective orders in a digital age; (2) attorneys’ “clear conflict of interest” regarding protective orders; (3) psychological test information’s vulnerability; (4) inadequate enforcement; (5) the ability to challenge protective orders; (6) the potential for a large number of protective orders requiring the release of protected test materials and the impact of that exposure on the materials; (7) access to the test materials under a given protective order; and (8) rare sanctions for breaches of a protective order. (Dr. Boone Decl., ¶ 30.) Dr. Boone further cites to a statement from Western Psychological Services on test security on the inadequacy of protective orders and a 2013 instance where an attorney failed to comply with the provisions of a protective order. (Id., ¶¶ 31-32.)

The Court does not find Plaintiff’s arguments persuasive. Plaintiff’s arguments amount to speculation as to whether a party will abide by a Court Order and the possible ramifications if a party does not abide by any such Order. Such speculation does not suffice to render any Order ineffective or an improper means by which to protect information.

And Dr. Boone’s 2013 incident does not substantiate any claim that this Plaintiff’s counsel will disregard a protective order, nor does it demonstrate that such violations are prevalent, as it appears Buswest suggests. Based on the evidence currently before the Court, there is no indication that Plaintiff’s counsel would engage in any behavior that contravenes a protective order concerning these materials. As is noted above, the Court recognizes the usefulness of the data in cross-examination and the fundamental fairness of all sides having full access to the evidence, and the Court finds Buswest’s

expert's fear of widespread social harm by compromising test security to be speculative especially given the rigorous ethical duties imposed on attorneys.

In all, "Defendant[] ha[s] not shown there is a substantial risk of abusive intentional dissemination or an unacceptable risk of inadvertent disclosure such that the trial court was required to find a protective order would not adequately address Dr. [Boone's] concerns about test security." (Randy's Trucking, supra, 91 Cal.App.5th at p. 842.)

Accordingly, the Court finds that Plaintiff and Plaintiff's counsel are entitled to production of the raw test data and testing material from the neuropsychological examination at issue, subject to a protective order. Thus, the Court grants Plaintiff's request for Plaintiff's counsel to have access to the examination data, but the Court requires a protective order deeming all recordings and other data confidential, to be viewed and used by counsel and experts only, and requiring their destruction at the end of the instant case.

III.

CONCLUSION

The Court GRANTS Defendant Buswest's Motion to Compel Mental Examination of Plaintiff.

[1] Per Buswest's counsel, during the meet and confer process, the parties agreed to the Sacramento location. (Cox Dec., ¶ 2.) Accordingly, the Court does not address the proposed location of the mental examination.

[2] The Court does not delve into Plaintiff's arguments as to the studies cited by Dr. Boone and the various studies cited by Plaintiff which Plaintiffs contends undermine Dr. Boone's asserted reasons for the proposed mental examination except to state, again, that counsel has laid no foundation that would suffice to substitute counsel's interpretation of medical treatises and the application of those treatises to the diagnosis of a medical condition for the interpretation and application of a medical professional.

[3] In the context of a claim for sexual assault, the Barrenda Court noted that "[t]he mere fact that a plaintiff has initiated an action seeking damages for extreme mental and emotional distress arising out of conduct of a sexual nature does not ipso facto provide "good cause" for discovery of other sexual conduct." (Barrenda, supra, 65 Cal.App.4th at p. 801.)

Although the Barrenda Court's analysis was made in the context of a claim of sexual assault, the Court finds no reason the same analytic framework does not apply in instances such as are presented here. Plaintiff has claimed CRPD. The mere fact that Plaintiff has claimed CRPD does not warrant an inquiry into all aspects of Plaintiff's mental health.

[4] All audio recordings and test materials will be subject to a protective order as will be set forth herein.

[5] Further, as discussed in Randy's Trucking, "[w]hile this regulation requires psychologists to maintain test security, it does not address a psychologist's duty when a court order requires an attorney's access to psychological tests or devices, particularly subject to a protective order that requires the parties to safeguard the use of the tests or devices. Put another way, the regulation does not prohibit a psychologist from producing tests or devices when ordered by a court subject to a protective order." (Randy's Trucking, supra, 91 Cal.App.5th at p. 839.)